

Datrixo SLLC

A Delaware Corporation

SUBSCRIPTION DOCUMENTS

November 2020

To subscribe for shares of Preferred stock of Datrixo SLLC, a Delaware corporation (the “Holding Company” or “Company”), the prospective invited subscriber must sign and complete the documents contained in this booklet in accordance with the instructions set forth herein. A signed, fully executed Subscription Documents should then be delivered to the Company using the “DocuSign” instruction, the “upload” function on the internal investor portal or by using contact information listed herein.

Please be sure that your name is the same in all signatures and places where it is printed on the documents. Duplicate copies of each signed document will be returned to you after your subscription is accepted and the equity tokens with respect to your subscription for Equity Stock (as hereinafter defined) were issued.

This booklet of Subscription Documents relates to the private offering of the Equity Stock in the form of security tokens. Delivery of these Subscription Documents to anyone other than the intended recipient is unauthorized, and any reproduction or circulation of this booklet, in whole or in part, is prohibited.

Subscriptions from suitable prospective investors will be accepted in the sole discretion of the Company after receipt of any or all Subscription Documents, properly completed and executed, and appropriate payments have been received. The Company reserves the right to rescind its provisional acceptance if for any reason the Company determines not to issue the Stock.

DATRIXO SLLC.

Instructions – Purchase of Preferred Equity Stock

Set forth below are instructions for your participation in the subscription of Common/ Preferred stock of the Company. Please complete this checklist as prescribed below.

- * Prior to making an investment, please review the attached “**Offering Terms**” in PPM and this “**Preferred Stock Subscription Agreement**”. Also, please review the (“**Notices and Risk Factors**”) attached as Exhibit, the (“**Accredited Investor Questionnaire**”) attached as Exhibit B, the (“**Stakeholder Rights Agreement**”) attached as Exhibit C, and the (“**Executive Summary**”) attached as Exhibit D.

If you desire to subscribe for equity, please:

- Complete and sign the “**Preferred Equity Stock Subscription Agreement**”.
- Complete and sign the “**Accredited Investor Questionnaire**” if applicable.
- Complete and sign the signature page to the “**Stakeholder Rights Agreement**”.
- Remit payment to: **Datrixo SLLC.**

If you have any questions or require assistance completing any of the documentation, please contact Milla Bakhareva by telephone at (646) 436 3677 or email at milla.bakhareva@datrigo.com (or milla.bakhareva@gmail.com).

THESE MATERIALS ARE INTENDED FOR LIMITED CIRCULATION TO INDIVIDUALS AND ENTITIES THAT HAVE OR MAY HAVE AN INTEREST IN PURCHASING UNITS OF PREFERRED STOCK OF DATRIXO SLLC. THESE MATERIALS DISCLOSE SUBJECT MATTER AND INFORMATION THAT IS CONSIDERED CONFIDENTIAL, PRIVILEGED AND/OR COMPETITIVELY SENSITIVE BY DATRIXO SLLC. INDIVIDUALS AND ENTITIES WHO RECEIVE THESE MATERIALS AGREE THAT THEY WILL HOLD THE INFORMATION CONTAINED HEREIN AND ALL RELATED DOCUMENTS AND DISCLOSURES RELATED HERETO IN THE STRICTEST CONFIDENCE. DISSEMINATION, PUBLICATION, DISTRIBUTION, DISCLOSURE, COPYING OR USE OF SUCH INFORMATION, DOCUMENTS AND DISCLOSURES IS PROHIBITED.

DATRIKO SLLC

Offering Terms

Securities Offered:	Equity tokens representing Preferred Equity Stock, no par value (“Preferred Stock”).	
Size of Offering:	Minimum Offering of Preferred Minimum Purchase by Investors	4,000 equity units 1 equity unit
Price Per Equity Token:	\$150.00 per equity token	
Description of Preferred Equity Stock; Shareholder Rights Agreement:	The holder of the equity tokens of the Preferred Stock will not be entitled to any voting rights. In the event of liquidation of the Company, the stockholders will be entitled to share in corporate assets on a pro rata basis after the Company satisfies all liabilities and after provision is made for each class of capital stock. Preferred equity units having preference over the Common Stock. Holders of Preferred Stock will be required to execute and deliver, and be bound by, the Stakeholder Rights Agreement attached hereto as Exhibit.	
Subscription Period:	The Company will be offering the equity units of Preferred Stock until March 21, 2021, subject to the Company extending the offering period in its sole discretion.	
Use of Proceeds:	The Company plans to use the proceeds from the sale of the equity tokens representing the Preferred Stock: ● Increase the Value of the ventures portfolio; ● Commercial launch of core products in 2 portfolio companies; ● Strengthen development team/development of core products; ● Promotion to/ subscription of customers for the custom products delivered through API in 1 portfolio company; ● Sales & Marketing; ● Strategic partnerships in the financial services industry; ● Participation in conferences; ● Administration and operations; and ● General corporate and business purposes. This above list is not limitative and will be adjusted as may be required by the business. The Holding Company’s management will	

Security Equity Token Offering:

retain broad discretion as to the allocation of the net proceeds of this offering.

The Company may initiate a Security Equity Token Offering as part of its business plan (the “STO”). Investors in the offering contemplated by these Subscription Documents shall be given one token per one equity unit and will be entitled to the right to invest in the STO on the same terms as other investors.

Dilution:

The Company may issue additional equity units of Common/ Preferred stock, or securities tokens exercisable or convertible into Common/ Preferred stock or other digital or traditional securities in the future, at prices and upon terms that the Company’s board of directors determines from time to time. It is possible that the terms and conditions under which the Company issues future equity units of Common/ Preferred stock, preferred stock, or securities exercisable or convertible into Common/ Preferred stock or other securities in the future may be more favorable than the prices and terms that the Company is offering Preferred Stock in this offering. In the event that the Company issues securities at prices which are less than the price of the Preferred Stock being offered in this offering, investors who purchase equity units tokens in this Offering will experience a dilution in such price per equity unit.

Risk Factors:

An investment in the Common/ Preferred Stock is extremely speculative, involves a high degree of risk and is a suitable investment only for certain investors. You should not invest in the Preferred Stock unless you are able to withstand a loss of your entire investment. See “Notices and Risk Factors” included in these Subscription Documents.

Resale Restrictions:

We are making this offering of equity tokens in reliance on exemptions from the registration requirements of the Securities Act of 1933, as amended (the “Securities Act”), and applicable state securities laws. Accordingly, the equity tokens representing Preferred Stock will be the “restricted securities,” as defined under the Securities Act, and are, therefore, subject to restriction on resale. You may not transfer these securities except in a transaction registered under the Securities Act and all applicable state securities laws or unless you obtain a legal opinion, reasonably acceptable to us. Each certificate, including digital equity tokens, evidencing the Preferred Stock will bear a legend evidencing such restriction.

Investor Requirements:

We will sell Preferred Stock in this offering only to investors who qualify as “accredited investors” or qualified investors as defined

under the Securities Act and the rules and regulations promulgated thereunder.

Subscribing Online

Datrixo Series LLC owns the Datrixo (c) Platform and operates the Datrixo Platform and dashboard located at <https://www.dashboard.datrixo.com/> that enables investors to become equity holders in Datrixo holding that owns its portfolio companies and products. Through the Platform, investors can browse and screen potential equity investments, view details of an investment and sign contractual documents online, including this Subscription Agreement. After the notification to the SEC about the offering of which this offering circular is a part, the Offering will be conducted through the Datrixo Platform, whereby investors will receive, review, execute and deliver subscription agreements electronically. For additional information, contact us or see “The Subscription Procedures.”

DATRI XO SLLC

EQUITY TOKENS SUBSCRIPTION AGREEMENT

THIS PREFERRED STOCK SUBSCRIPTION AGREEMENT (this “*Agreement*”) is made as of the last date set forth on the signature page hereto, by and between Datrixo SLLC, a Delaware corporation (the “*Holding Company*” or the “*Company*”), and the undersigned subscriber (the “*Subscriber*”).

RECITALS

Subscriber desires to purchase equity tokens representing the Preferred Stock, no par value, of the Company (the “*Stock*”) on the terms set forth in this Agreement and in the subscription amount set forth on the Signature Page hereof.

The Company desires to issue and sell such equity tokens representing Stock to Subscriber in accordance with the terms hereof and the terms of the Stakeholder Rights Agreement in the form annexed hereto as Exhibit (the “*Stakeholder Rights Agreement*”).

In consideration of the foregoing recitals and the mutual promises, representations, warranties, and covenants hereinafter set forth and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties hereto agree as follows:

1. Purchase and Sale; Closing; Payments.

1.1 Subject to the terms and conditions of this Agreement, Subscriber hereby agrees to purchase from the Company and the Company hereby agrees to sell and issue to Subscriber

the number of equity tokens representing of Stock, for the total consideration, set forth on the Signature Page hereof (the “Purchase Price”).

1.2 The Subscriber shall deliver to the Company (i) an executed version of this Agreement, (ii) an executed version of the counterpart signature page to the Stakeholder Rights Agreement, and (iii) payment of the amount equal to the Purchase Price by check, ACH, wire or other means as appropriate; and in exchange therefor, on the Closing Date (as defined below), the Subscriber shall be issued a digital equity tokens setting forth the purchased equity tokens representing Stock. This Agreement shall become effective when it has been duly executed by Subscriber and this Agreement has been accepted and signed by the Company (the “**Closing Date**”). **All subscription funds delivered by Subscriber will be paid directly to the Company and will be available for immediate use by the Company.**

2. Representations and Warranties of Subscriber. Subscriber hereby represents and warrants to the Company as follows:

2.1 Authorization. Subscriber has all necessary power and authority to execute and deliver this Agreement and to carry out its provisions. All action on Subscriber’s part required for the lawful execution and delivery of this Agreement has been taken. Upon its execution and delivery, this Agreement will be a valid and binding obligation of Subscriber, enforceable in accordance with its terms, except (a) as limited by applicable bankruptcy, insolvency, reorganization, moratorium or other laws of general application affecting enforcement of creditors’ rights, and (b) as limited by general principles of equity that restrict the availability of equitable remedies.

2.2 Restricted Securities. Subscriber is aware that the equity tokens representing Stock has not been registered under the Securities Act of 1933, as amended (the “**Securities Act**”), and that the Stock, represented in any format, is deemed to constitute “restricted securities” under Rule 144 promulgated under the Securities Act (“**Rule 144**”). Subscriber also understands that the Stock is being offered and sold pursuant to an exemption from registration contained in the Securities Act based in part upon Subscriber’s representations contained in this Agreement and the Accredited Investor Questionnaire (if applicable). Subscriber understands that there is no definite plan to register the Stock for resale or distribution under any applicable securities law, rule or regulation.

2.3 Purchase Entirely for Own Account. Subscriber is obtaining the Stock for Subscriber’s own account and Subscriber has no present intention of distributing, transferring or selling the Stock except as permitted under the Securities Act and applicable state securities laws.

2.4 Disclosure of Information and Risk of Investment. Subscriber has sufficient knowledge and experience in business and financial matters to evaluate the Holding Company, its proposed activities and the risks and merits of this investment. Subscriber has the ability to accept the high risk and lack of liquidity inherent in this type of investment. Subscriber had an opportunity to discuss the Company’s business, management and financial affairs with directors,

officers and management of the Company, and to request and review the Company's PPM, business plan, financial forecasts, and other documentation that, in the Subscriber's judgment, was sufficient to fully evaluate the risks and merits of this investment. Subscriber has also had the opportunity to ask questions of and receive answers from the Company and its management regarding the terms and conditions of this investment. Subscriber understands the significant risks of this investment, including, without limitation, those set forth in the Notices and Risk Factors. Subscriber understands the business objectives and policies of, and the strategies which may be pursued by, the Company, including, without limitation, those set forth in the Executive Summary attached as Exhibit D to the Subscription Documents of which this Agreement forms a part. Subscriber has the capacity to protect its own interests in connection with the purchase of the Stock by virtue of its business or financial expertise.

2.5 *Limitations on Resale.* Subscriber understands that the Stock must be held indefinitely (or 12 months) unless it is subsequently registered under the Securities Act or an exemption from such registration is available. Subscriber has been advised or is aware of the provisions of Rule 144, as in effect from time to time, which permit limited resale of shares purchased in a private placement subject to the satisfaction of certain conditions, including, among other things, the availability of certain current public information about the Company, the resale occurring following the required holding period under Rule 144, and the number of equity units being sold during any three month period not exceeding specified limitations.

2.6 *Other Restrictions on Transfer.* Subscriber acknowledges and agrees that the Stock is subject to restrictions on transfer set forth elsewhere in this Section 2 and in Section 4 hereof and in the Shareholder Rights Agreement.

2.7 *Foreign Investors.* If Subscriber is not a United States person (as defined by Section 7701(a)(30) of the Internal Revenue Code of 1986, as amended), Subscriber hereby represents that Subscriber has satisfied itself as to the full observance of the laws of its jurisdiction in connection with any invitation to subscribe for the equity tokens representing Stock or any use of this Agreement, including (i) the legal requirements within its jurisdiction for the purchase of the Stock, (ii) any foreign exchange restrictions applicable to such purchase, (iii) any government or other consents that may need to be obtained in connection with such purchase, and (iv) the income tax and other tax consequences, if any, that may be relevant to the purchase, holding, redemption, sale or transfer of the Stock. The Company's offer and sale and Subscriber's subscription and payment for and continued beneficial ownership of the Stock will not violate any applicable securities or other laws of Subscriber's jurisdiction. The funds used to purchase the Stock do not violate the anti-money laundering provisions of the Money Laundering Control Act of 1986 or the Bank Secrecy Act of 1970, as amended by the USA Patriot Act of 2001.

2.8 *Review of Agreement and Advice of Counsel.* Subscriber has reviewed and understands this Agreement in its entirety, including, but not limited to, the Exhibits attached hereto, has had an opportunity to obtain the advice of legal counsel, financial advisors, and tax and accounting professionals prior to executing this Agreement and fully understands all

provisions of this Agreement and the legal, financial, tax and accounting consequences of purchasing the Stock.

2.9 *Location of Subscriber.* If Subscriber is an individual, then Subscriber resides in the state or province identified in the address of Subscriber set forth on the signature page hereto; if Subscriber is a fund formed as partnership, corporation, limited liability company or other entity, then the office or offices of Subscriber in which its investment decision was made is located at the address or addresses of Subscriber set forth on the signature page hereto.

2.10 *No Brokers.* Subscriber has not dealt with a broker in connection with the purchase of the Stock and agrees to indemnify and hold the Company's management and the Company harmless from any claims for brokerage or fees in connection with the transactions contemplated herein.

2.11 *No Tax/Legal Advice.* Subscriber is not relying on the Company or any of its management, officers or employees with respect to any legal, investment, tax or accounting considerations involved in the purchase, ownership and disposition of Stock. Subscriber has relied solely on the advice of, or has consulting with, in regard to the legal, investment, tax and accounting considerations involved in the purchase, ownership and disposition of Stock, Subscriber's own legal counsel, business and/or investment advisor, tax advisor, and accountant.

2.12 *Legends.* The Subscriber understands that the Stock may bear one or all of the legends set forth in Section 4 hereof.

3. Representations and Warranties of the Company. The Company hereby represents and warrants to and agrees with Subscriber that each of the following statements is true and correct on the date hereof and, if this subscription is accepted by the Company in whole or in part, will be true and correct on the Closing Date.

3.1 *Organization, Good Standing and Qualification.* The Company is a corporation duly organized, validly existing and in good standing under the laws of the State of Delaware. The Company has all requisite corporate power and authority to own and operate its properties and assets, to execute and deliver this Agreement, to issue and sell the equity tokens representing Stock and to carry out the provisions of this Agreement.

3.2 *Authorization; Binding Obligations.* All corporate action on the part of the Company, and its officers, directors and stockholders, necessary for the authorization of this Agreement, the performance of all obligations of the Company hereunder and thereunder at the Closing and the authorization, sale, issuance and delivery of the Stock pursuant hereto has been taken or will be taken prior to the Closing Date. This Agreement, when executed and delivered, will be valid and binding obligation of the Company enforceable in accordance with its terms, except (a) as limited by applicable bankruptcy, insolvency, reorganization, moratorium or other laws of general application affecting enforcement of creditors' rights and (b) general principles of equity that restrict the availability of equitable remedies.

3.3 *Litigation.* There are no actions, proceedings or claims before or by any court or governmental authority (or any state of facts which management of the Company has concluded would reasonably be expected to give rise thereto) pending or, to the knowledge of the Company, threatened, against the Company's or its officers or directors which, if determined adversely to the Company or such officer or director, would have a Material Adverse Effect or adversely affect the transactions contemplated by this Agreement. For purposes of this Agreement, "**Material Adverse Effect**" shall mean, as to any entity, any material adverse effect on the business, operations, financial condition, assets or results of operations of the Company.

3.4 *Intellectual Property.* To the knowledge of the Company, the Company owns or possesses or has valid right to use all trademarks, service marks, trade names, trademark registrations, service mark registrations, copyrights, licenses, inventions, trade secrets and similar rights ("**Intellectual Property**") necessary for the conduct of the business of the Company as currently carried on.

3.5 *Title to equity tokens representing Stock.* Subscriber will acquire the equity tokens representing Stock free and clear of all liens, or other encumbrances.

3.6 *Finders.* The Company is not obligated to pay a finder's or origination fee or similar fee in connection with this offering and agrees to indemnify the Subscriber from any such claim made against the Subscriber by any other person.

4. *Restrictive Legends.* All equity tokens representing the Stock shall have endorsed thereon legends substantively similar to the following, and any additional legend required or appropriate under applicable state securities laws:

"THE EQUITY UNITS REPRESENTED BY THIS EQUITY TOKEN HAVE NOT BEEN REGISTERED UNDER THE SECURITIES ACT OF 1933, AS AMENDED. THEY MAY NOT BE SOLD, OFFERED FOR SALE, PLEDGED OR HYPOTHECATED IN THE ABSENCE OF AN EFFECTIVE REGISTRATION STATEMENT AS TO THE SECURITIES UNDER SAID ACT OR OPINION OF COUNSEL SATISFACTORY TO THE COMPANY THAT SUCH REGISTRATION IS NOT REQUIRED."

"THE EQUITY UNITS REPRESENTED BY THIS EQUITY TOKEN ARE SUBJECT TO RESTRICTIONS ON TRANSFER AS PROVIDED IN THE COMPANY'S STAKEHOLDER RIGHTS AGREEMENT."

5. *Miscellaneous.*

5.1 *Survival of Warranties.* Unless otherwise set forth in this Agreement, the warranties, representations and covenants of the Company and the Subscriber contained in or made pursuant to this Agreement shall survive the execution and delivery of this Agreement and the Closing.

5.2 *Transfer; Successors and Assigns.* The terms and conditions of this Agreement shall insure to the benefit of and be binding upon the respective successors and assigns of the parties, including permitted transferees of any Stock. Nothing in this Agreement, express or implied, is intended to confer upon any party other than the parties hereto or their respective successors and assigns any rights, remedies, obligations or liabilities under or by reason of this Agreement, except as expressly provided in this Agreement.

5.3 *Governing and Submission to Jurisdiction.* This Agreement and all acts and transactions pursuant hereto and the rights and obligations of the parties hereto shall be governed, construed and interpreted in accordance with the laws of the State of Delaware, without giving effect to principles of conflicts of law. Each of the Subscriber and the Company submits to the jurisdiction of any state or federal court sitting in the State of Delaware, in any action or proceeding arising out of or relating to this Agreement and agrees that all claims in respect of the action or proceeding may be heard and determined in any such court. Each of the Subscriber and the Company waives any defense of inconvenient forum to the maintenance of any action or proceeding so brought and waives any bond, surety or other security that might be required of any other party with respect thereto.

5.4 *Counterparts.* This Agreement may be executed in several counterparts, and each counterpart when so executed and delivered shall constitute an original instrument, but all such separate counterparts shall constitute one and the same agreement. Signatures transmitted herein via facsimile or any electronic image shall be deemed original signatures.

5.5 *Titles and Subtitles.* The titles and subtitles used in this Agreement are used for convenience only and are not to be considered in construing or interpreting this Agreement.

5.6 *Amendments and Waivers.* Any term of this Agreement may be amended or waived only with the written consent of the Company and the Subscriber.

5.7 *Severability.* If one or more provisions of this Agreement are held to be unenforceable under applicable law, such provision shall be excluded from this Agreement and the balance of the Agreement shall be interpreted as though such provision were so excluded and shall be enforceable in accordance with its terms.

5.8 *Entire Agreement.* This Agreement, and the documents referred to herein constitute the entire agreement between the parties hereto pertaining to the subject matter hereof, and any and all other written or oral agreements relating to the subject matter hereof existing between the parties hereto are expressly canceled.

5.9 *Confidentiality.* Each Subscriber hereto agrees that, except with the prior written permission of the Company, it shall at all times hold in confidence and trust and not use or disclose any confidential information of the Company provided to or learned by such Subscriber in connection with the Subscriber's rights under the Agreements. Notwithstanding the foregoing, each Subscriber may disclose any confidential information of the Company provided to or learned by such Subscriber in connection with such rights to the minimum extent necessary (i) to

evaluate or monitor such Subscriber's investment in the Company; (ii) as required by any court or other governmental body, provided that such Subscriber provides the Company with prompt notice of such court order or requirement to the Company to enable the Company to seek a protective order or otherwise to prevent or restrict such disclosure; (iii) to legal counsel of such Subscriber; (iv) in connection with the enforcement of this Agreement or rights under this Agreement; or (v) to comply with applicable law.

5.10 Indemnification. The Company and the Subscriber each agrees to indemnify and hold harmless the other and their respective affiliates and their respective directors, officers, employees and agents from and against any and all losses, claims, damages, liabilities and expenses (including without limitation reasonable attorney fees and disbursements and other expenses incurred in connection with investigating, preparing or defending any action, claim or proceeding, pending or threatened and the costs of enforcement thereof) (collectively, "**Losses**") to which such person may become subject as a result of any breach of representation, warranty, covenant or agreement made by or to be performed on the part of the Company or the Subscriber, as applicable, under this Agreement, and will reimburse any such person for all such amounts as they are incurred by such person.

5.11 Use of Proceeds. The Company's management will retain broad discretion as to the allocation of the net proceeds of this offering.

[Signature page follows]

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the last day and year set forth below.

SUBSCRIBER:

_____	\$ _____
Print Name/ Fund Name	Subscription Amount Applied For
_____	_____
Signature	# of Tokens (\$150.00 per token)
Address: _____	Date: _____

Telephone: _____	_____
Email: _____	

****Section below to be completed by the Company****

Accepted and Agreed, as of _____, 2020:

\$ _____
Subscription Amount Accepted

of Tokens (\$150.00 per unit)

DATRIKO SLLC

By: _____
Name: Milla Bakhareva
Title: CEO
Telephone: 646 436 3677
Email: milla.bakhareva@gmail.com

EXHIBIT

NOTICES AND RISK FACTORS

GENERAL NOTICE

THE EQUITY TOKENS REPRESENTING UNITS OF PREFERRED STOCK OF DATRIXO SLLC. HAVE NOT BEEN REGISTERED UNDER THE SECURITIES ACT OF 1933 OR THE SECURITIES LAWS OF ANY STATE. THERE ARE FURTHER RESTRICTIONS ON THE TRANSFERABILITY OF SUCH EQUITY UNITS DESCRIBED HEREIN. THE PURCHASE OF SHARES, UNITS OF PREFERRED STOCK OF DATRIXO SLLC INVOLVES A HIGH DEGREE OF RISK AND SHOULD BE CONSIDERED ONLY BY PERSONS WHO CAN BEAR THE RISK OF THE LOSS OF THEIR ENTIRE INVESTMENT.

IN MAKING AN INVESTMENT DECISION INVESTORS MUST RELY ON THEIR OWN EXAMINATION OF THE COMPANY. THESE SECURITIES HAVE NOT BEEN RECOMMENDED BY ANY FEDERAL OR STATE SECURITIES COMMISSION OR REGULATORY AUTHORITY. FURTHERMORE, THE FOREGOING AUTHORITIES HAVE NOT CONFIRMED THE ACCURACY OR DETERMINED THE ADEQUACY OF THIS DOCUMENT. ANY REPRESENTATION TO THE CONTRARY IS A CRIMINAL OFFENSE. THESE SECURITIES ARE SUBJECT TO RESTRICTIONS ON TRANSFERABILITY AND RESALE AND MAY NOT BE TRANSFERRED OR RESOLD EXCEPT AS PERMITTED UNDER THE SECURITIES ACT OF 1933 AND THE APPLICABLE STATE SECURITIES LAWS PURSUANT TO REGISTRATION OR EXEMPTION THEREFROM, AND AS PERMITTED UNDER THIS AGREEMENT. INVESTORS SHOULD BE AWARE THAT THEY WILL BE REQUIRED TO BEAR THE FINANCIAL RISKS OF THIS INVESTMENT FOR AN INDEFINITE PERIOD OF TIME.

ADDITIONAL NOTICE

IN ADDITION, PROSPECTIVE PURCHASERS SHOULD CAREFULLY CONSIDER, AMONG OTHER RISK FACTORS, THE FOLLOWING:

RISKS RELATED TO COMPANY'S BUSINESS

No Significant Operating History and Need for Additional Financing. The Company has no significant operating history. The Company will likely need additional financing to support its projected level of operations. No assurance can be given as to the availability of additional financing or, if available, the terms upon which it may be obtained. Any such additional financing will likely result in dilution of an investor's equity investment in the Company.

Uncertainty of Future Operating Results. The Company may not be able to enter into agreements with third parties necessary to grow the business. There can be no assurance that the

Company's services, products or/and its portfolio companies will find market acceptance or will be saleable at a price and on the level that is profitable to the holding Company.

Need to Protect Intellectual Property. The Company's success, competitive position and future revenues will depend in part on its ability to protect the Company's intellectual property, products, methods and processes, to preserve its trade secrets, to prevent third parties from infringing on its proprietary rights, and to operate without infringing upon the proprietary rights of third parties. The Company can give no assurance that its business plan or concept can be protected as a proprietary right and not legally copied or replicated by competitors, which could materially adversely affect the Company's ability to commercialize its business plan.

Discretion as to Use of Proceeds. The Company's management will retain broad discretion as to the allocation of the net proceeds of this offering, including but not limited to the use of such proceeds for any or all of the following: (a) developing intellectual property; (b) hiring of staff; (c) maintaining a place of business; (d) payment of fees for professional services rendered; (e) fees and expenses to take the Company or its portfolio entity public and the fees and expenses to maintain its public status; and (f) paying for other operating expenses.

RISKS RELATED TO OWNERSHIP OF PREFERRED STOCK

No Public Market for Shares (Stock Units). There is no public market for the Preferred Stock of the Company at the time of this offering. The sale of the equity units of Preferred Stock is not being registered under the Securities Act of 1933, as amended (the "***Securities Act***"), and such equity units may not be resold or otherwise transferred unless they are subsequently registered under the Securities Act and qualified under applicable state laws or unless exemptions from registration and qualification are available. Accordingly, purchasers may not be able to readily liquidate their investment. It is highly uncertain whether the Company can effectuate an initial public offering and/or the holders of the Preferred Stock will be able to include any or all of their equity units of the Preferred Stock in such an offering. Even if the Company is public, the ability of an investor to sell equity units of Common/ Preferred Stock in compliance with Rule 144 under the Securities Act at satisfactory prices may depend on, among other things, development of a trading market for the Company's Common/ Preferred Stock. Moreover, such sales may have a depressive effect on the market price of the Company's Common/ Preferred Stock and adversely affect the price per equity unit received in a subsequent Rule 144 sale or a public offering of the Company's Common/ Preferred Stock.

Stakeholder Rights Agreement. The Stakeholder Rights Agreement contains several provisions which place contractual limitations on the equity tokens representing the Preferred Stock, including: (a) a restriction on the transfer of equity tokens of Preferred Stock to a third party; and (b) a right of first refusal with respect to proposed transfers of stock.

Absence of Dividends. The Company does not expect to declare or pay any cash dividends in the foreseeable future.

Need for Additional Financing; Increased Expenses; Dilution. The Company plans to hire new personnel and otherwise expand its operations, all of which will substantially increase its expenses and cash requirements. As the Company continues to expand its portfolio, services and products, marketing and other operations, its expenses are expected to continue to increase substantially. To meet these expenses, the Company expects to pursue additional financing. There is no assurance that the Company will be able to obtain additional financing on attractive terms or at all. If sufficient financing is not available when needed the Company may be forced to curtail or terminate operations and investors could sustain a total loss of their investment. Any additional financing will likely dilute holders of the Preferred Stock.

Security Equity Token Offering. The Company is contemplating the commencement of a Security Equity Token Offering (“STO”) to raise financing and to launch its business. STO’s are currently not regulated in the same manner as the traditional security offerings are regulated, and as such, the governmental and regulatory protections offered to the purchasers of regulated securities may not be available to the purchasers of tokens offered in a Security Token Offering.

Competition. The Company might face several competitors, that are larger and have substantially greater financial, marketing, technical and human resources than the Company. There can be no assurance that the Company will be able to compete with these competitors in the long term or that other companies with substantially greater financial, marketing, technical and human resources will not enter into competition with the Company.

Limitation of Liability and Indemnification. The Company’s charter documents may limit the circumstances under which the Company’s officers and directors can be held liable to the Company. As a result, Company stockholders may have a more limited right of action in certain cases than they would in the absence of this provision. In addition, the Company’s officers and directors will be entitled to indemnification from the Company, except in certain circumstances. The assets of the Company will be available to satisfy these indemnification obligations and such obligations will survive the dissolution of the Company.

EXHIBIT
SUBSCRIBER QUESTIONNAIRE
DATRIKO SLLC

Datriko SLLC
205 E. 42nd Street, 14th Floor
New York, NY 10017

Ladies/Gentlemen:

The information contained herein is being furnished to Datriko SLLC, a Delaware corporation (the “Holding Company” or “Company”) in order for the Company to determine whether the undersigned’s subscription for security equity tokens representing Equity Stock therein may be accepted pursuant to Section 4(a)(2) of the Securities Act of 1933, as amended (the “Securities Act”) and Regulation D promulgated thereunder (“Regulation D”) or Regulation S promulgated (“Regulation S”). The undersigned understands that (i) the Company will rely upon the following information for purposes of complying with Federal and applicable state securities laws, (ii) the Stock will not be registered under the Securities Act in reliance upon the exemption from registration provided by Section 4(a)(2) of the Securities Act and Regulation D and Regulation S, and (iii) this questionnaire is not an offer to sell nor the solicitation of an offer to buy any Stock, or any other securities, to the undersigned.

The following representations and information are furnished herewith:

1. **Qualification As An Accredited Investor or Qualified Fund or Investor.** Please check the categories applicable to you indicating the basis upon which you qualify as an Accredited Investor for purposes of the Securities Act and Regulation D thereunder.

- ☐ **Individual with Net Worth In Excess of \$1.0 Million.** A natural person (not an entity) whose net worth, or joint net worth with his or her spouse, at the time of purchase exceeds \$1,000,000. (**Explanation:** In calculating your net worth, you must exclude the value of your primary residence. This means you must exclude both the equity in your primary residence and any mortgage or other debt secured by your primary residence up to the fair market value of your primary residence; provided, however, that any indebtedness secured by your primary residence that (i) you have incurred in the 60 day period prior to the date of your subscription to the Company or (ii) is in excess of the fair market value of your primary residence should be considered a liability and deducted from your aggregate net worth. In calculating your net worth, you may include your equity in personal property and real estate (excluding your primary residence), cash, short-term investments, stock and securities. Your inclusion of equity in personal property and real estate (excluding your primary residence) should be based on the fair market value of such property less debt secured by such property.)

- ☐ **Individual with a \$200,000 Individual Annual Income.** A natural person (not an entity) who had an individual income of more than \$200,000 in each of the preceding two calendar years, and has a reasonable expectation of reaching the same income level in the current year.
- ☐ **Individual with a \$300,000 Joint Annual Income.** A natural person (not an entity) who had joint income with his or her spouse in excess of \$300,000 in each of the preceding two calendar years, and has a reasonable expectation of reaching the same income level in the current year.
- ☐ **Corporations or Partnerships.** A corporation, partnership, or similar entity that has in excess of \$5 million of assets and was not formed for the specific purpose of acquiring Convertible Promissory Notes in the Company.
- ☐ **Revocable Trust.** A trust that is revocable by its grantors and *each* of whose grantors is an accredited investor. (If this category is checked, please also check the additional category or categories under which the grantor qualifies as an accredited investor.)
- ☐ **Irrevocable Trust.** A trust (other than an ERISA plan) that (i) is not revocable by its grantors, (ii) has in excess of \$5 million of assets, (iii) was not formed for the specific purpose of acquiring Convertible Promissory Notes, and (iv) is directed by a person who has such knowledge and experience in financial and business matters that such person is capable of evaluating the merits and risks of an investment in the Company.
- ☐ **IRA or Similar Benefit Plan.** An IRA, Keogh or similar benefit plan that covers a natural person who is an accredited investor. (If this category is checked, please also check the additional category or categories under which the natural person covered by the IRA or plan qualifies as an accredited investor.)
- ☐ **Participant-Directed Employee Benefit Plan Account.** A participant-directed employee benefit plan investing at the direction of, and for the account of, a participant who is an accredited investor. (If this category is checked, please also check the additional category or categories under which the participant qualifies as an accredited investor.)
- ☐ **Other ERISA Plan.** An employee benefit plan within the meaning of Title I of the ERISA Act *other than* a participant-directed plan with total assets in excess of \$5 million *or* for which investment decisions (including the decision to purchase an Interest) are made by a bank, registered investment adviser, savings and loan association, or insurance company.
- ☐ **Government Benefit Plan.** A plan established and maintained by a state, municipality, or any agency of a state or municipality, for the benefit of its employees, with total assets in excess of \$5 million.

- ☐ **Non-Profit Entity.** An organization described in Section 501(c)(3) of the Internal Revenue Code, as amended, with total assets in excess of \$5 million (including endowment, annuity and life income funds), as shown by the organization's most recent audited financial statements.
- ☐ **Other Institutional Investor (check one).**
 - ☐ A bank, as defined in Section 3(a)(2) of the Securities Act (whether acting for its own account or in a fiduciary capacity);
 - ☐ A savings and loan association or similar institution, as defined in Section 3(a)(5)(A) of the Securities Act (whether acting for its own account or in a fiduciary capacity);
 - ☐ A broker-dealer registered under the Securities Exchange Act of 1934, as amended;
 - ☐ An insurance company, as defined in section 2(13) of the Securities Act;
 - ☐ A "business development company," as defined in Section 2(a)(48) of the Investment Company Act;
 - ☐ A small business investment company licensed under Section 301(c) or (d) of the Small Business Investment Act of 1958, as amended; or
 - ☐ A "private business development company" as defined in Section 202(a)(22) of the Investment Advisers Act of 1940, as amended.
- ☐ **Executive Officer or Director.** A natural person who is an executive officer, director or managing member of the Company.
- ☐ **Entity Owned Entirely By Accredited Investors.** A corporation, partnership, private investment company or similar entity *each* of whose equity owners is an accredited investor.(If this category is checked, please also check the additional category or categories under which each equity owner qualifies as an accredited investor.)
- ☐ **I do not qualify for any of the above.**

2. **Representations and Warranties By Limited Liability Companies, Corporations, Partnerships, Trusts and Estates**

If the Subscriber is a corporation, partnership, limited liability company or trust, the Subscriber and each person signing on behalf of Subscriber certifies that the following responses are accurate and complete:

Was the undersigned organized or reorganized for the specific purpose, or for the purpose among other purposes, of acquiring interests in the Company?

Yes ☐ No ☐

Will the Subscriber, at any time, invest more than 40% of Subscriber's assets in the Company?

Yes ☐ No ☐

Under the Subscribing entity's governing documents and in practice, are the Subscribing entity's investment decisions based on the investment objectives of the Subscribing entity and its owners generally and not on the particular investment objectives of any one or more of its individual owners?

Yes ☐ No ☐

Does any individual shareholder, partner or member or group of shareholders, partners or members of the undersigned have the right to elect whether or not to participate in the investment of the Subscribing entity in the Company or to determine the level of participation of such partner or group therein?

Yes ☐ No ☐

Is the Subscribing entity authorized and qualified to become a note holder of the Company and does the Subscribing entity and the undersigned hereto further represent and warrant that such signatory has been duly authorized by the Subscribing entity to execute the Subscription Documents?

Yes ☐ No ☐

Is the undersigned a private investment company which is not registered under the Investment Company Act, as amended, in reliance on Section 3(c)(1) or Section 3(c)(7) thereof?

Yes ☐ No ☐

Date: _____

By: _____

Name: _____

Company Name (if any): _____

Title (if any): _____

EXHIBIT
STAKEHOLDER RIGHTS AGREEMENT

See attached.

DATRIKO SLLC

STAKEHOLDER RIGHTS AGREEMENT

This Stakeholder Rights Agreement (the “**Agreement**”) is made as of November 21, 2020, by and among Datriko Series LLC, a Delaware corporation (the “**Holding Company**” or the “**Company**”), and the founding partners of the Company (the “**Founders**”) and the investors (the “**Investors**” and with the Founders, the “**Stockholders**”) listed on specific Exhibit hereto, as such Exhibit may be amended from time to time in accordance with the terms hereof.

RECITALS

The Company and the equity units token holders as Stockholders hereby agree that this Agreement shall govern the rights and obligations of the Stockholders and certain other matters as set forth herein.

AGREEMENT

The parties hereby agree as follows:

1. ***Covenants of the Company.***

1.1 ***Notice of Future Offers.***

a. Subject to the terms and conditions specified in this Section 1.1, the Company hereby will try to inform each equity unit token holder as Stockholder about future sales by the Company of its equity tokens representing Equity Units (as hereinafter defined). Each time the Company proposes to offer any equity tokens, equity units of, or securities convertible into or exercisable for any equity units of, any class of its capital stock (“**Equity Units**”), the Company shall try to deliver a notice to the Stockholders stating (i) its bona fide intention to offer such Equity Units, (ii) the number of such Equity Units to be offered, and (iii) the price and terms, if any, upon which it proposes to offer such Equity Units. The Company might deliver this notice through the registered account of the stockholder on Datriko internal investors platform/dahsboard portal created specifically for the investor. ***The obligation of the investor to maintain its working account on this dashboard portal.***

b. This Section 1.1 shall not apply to: (a) the issuance of securities pursuant to stock splits, stock dividends, or similar transactions; (b) the issuance of securities or options to purchase securities to employees, consultants, advisors, agents, officers or directors of the Company for services rendered or to be rendered (including options and warrants granted prior to the date hereof); (c) the issuance of securities to financial institutions or lessors in connection with commercial credit arrangements, equipment financings, commercial property lease transactions, or similar transactions; (d) the issuance of securities pursuant to warrants, notes, or other rights to acquire securities of the Company; (e) the issuance of securities in connection with acquisition transactions approved by the Board of Directors of the Company (the “**Board**”);

(f) the issuance of Common/ Preferred Stock in a public offering; (g) the issuance of securities in strategic partnership transactions approved by the Board; or (h) the issuance of securities in any other transaction in which exemption from the provisions of this Agreement is approved by the affirmative vote of at least a majority of the then-outstanding shares of Common/ Preferred Stock (collectively “**Excluded Issuances**”).

2. ***Transfer Restrictions, Right of First Refusal and Co-Sale, Drag-Along Right.***

2.1 ***Transfer Restrictions.***

a. **Prohibited Transfers.** Except as otherwise provided in Section 2.2 of this Agreement, an equity token holder as a Stockholder shall not sell, assign, transfer, pledge, hypothecate or otherwise encumber or dispose of in any way, all or any part of or any interest in such Stockholder’s Equity Units. Any attempt by a Stockholder to transfer such Stockholder’s Equity Units in violation of this Agreement shall be void and the Company agrees it will not execute such a transfer, nor will it treat any alleged transferee as the holder of such Equity Units, without the prior written consent of the Board.

b. **Permitted Transactions.** The restrictions contained in Section 2.1 and the provisions of Section 2.2 of this Agreement shall not apply to any of the following (a “**Permitted Transferee**”):

- i. Any repurchase and recalls of Preferred Stock by the Company;
- ii. A planned exchange of the stock units on transferable units after the lock-up period;
- iii. Any transfer for estate planning purposes to a Stockholder’s Immediate Family if individual, a trust for the benefit of an individual Stockholder or such Stockholder’s Immediate Family, a foundation in which an individual Stockholder or such Stockholder’s Immediate Family controls the management of the assets, or any other entity in which an individual Stockholder or such Stockholder’s Immediate Family owns more than fifty percent (50%) of the voting interests. “**Immediate Family**” as used herein shall mean the Stockholder’s spouse and any lineal descendant of either the Stockholder or the Stockholder’s spouse, including adoptive relationships; *provided*, in each case, that the pledgee, transferee or donee, shall furnish the Company with a written agreement to be bound by and comply with all provisions of this Agreement applicable to the Stockholder; or
- iv. Any sale, assignment or transfer of equity tokens as Equity Units between members, as of the date hereof, of a Stockholder that is a (series) limited liability company.

c. Legends. Each equity token representing equity units issued to a Stockholder or Permitted Transferee shall bear legends substantively similar to the following:

“THE EQUITY UNITS REPRESENTED BY THIS EQUITY TOKEN HAVE NOT BEEN REGISTERED UNDER THE SECURITIES ACT OF 1933, AS AMENDED. THEY MAY NOT BE SOLD, OFFERED FOR SALE, PLEDGED OR HYPOTHECATED IN THE ABSENCE OF AN EFFECTIVE REGISTRATION STATEMENT AS TO THE SECURITIES UNDER SAID ACT OR OPINION OF COUNSEL SATISFACTORY TO THE COMPANY THAT SUCH REGISTRATION IS NOT REQUIRED.”

“THE EQUITY UNITS REPRESENTED BY THIS EQUITY TOKEN ARE SUBJECT TO RESTRICTIONS ON TRANSFER AS PROVIDED IN THE COMPANY’S STAKEHOLDER RIGHTS AGREEMENT.”

2.2 *Sales by Investors.*

a. Notice of Sales; Assignment of Company Right of First Refusal.

i. Should any Investor (or a Permitted Transferee) (the “***Selling Investor***”) propose to accept one or more bona fide offers (collectively, a “***Purchase Offer***”) from any persons to purchase equity tokens representing of the Company’s capital stock (the “***Selling Investor’s Equity Units***”) from such Selling Investor, such Selling Investor shall promptly deliver a notice (the “***Notice***”) to the Company and each other Stockholder stating the terms and conditions of such Purchase Offer including, without limitation, the number of the Selling Investor’s Equity Units proposed to be sold or transferred, the nature of such sale or transfer, the consideration to be paid, and the name and address of each prospective purchaser or transferee.

ii. The Company will have the right (the “***Right of First Refusal***”), for a period of thirty(30) days beginning on the date of receipt by the Company of the Notice, to submit, prior to the end of such period, notice of its irrevocable commitment to exercise such Right of First Refusal to purchase all or some of the Selling Investor’s Equity Units pursuant to the specified terms and conditions of such Purchase Offer.

b. No Adverse Effect. The exercise or non-exercise of the rights of the Investors hereunder to participate in one or more sales of a Selling Investor’s equity tokens representing Equity Units shall not adversely affect their rights to participate in subsequent sales of a Selling Investor’s equity tokens as Equities.

2.3 *Drag-Along Right.*

a. Definitions. A “***Sale of the Company***” shall mean either: (a) a transaction or series of related transactions in which a person or entity who is not affiliated with the Company or any portfolio subsidiary of the Company, or a group of related persons and/or entities who are not affiliated with the Company or any portfolio subsidiary of the Company, acquires from equity token holders as stockholders of the Company equity units representing more than fifty percent (50%) of the outstanding voting power of the Company (a “***Stock Sale***”); or (b) a transaction that qualifies as a Liquidation Transaction.

3. ***Miscellaneous.***

3.1 *Termination.* This Agreement shall terminate, and have no further force and effect, upon a Termination Event.

3.2 *Entire Agreement.* This Agreement constitutes the entire agreement between the parties hereto pertaining to the subject matter hereof, and any and all other written or oral agreements relating to the subject matter hereof existing between the parties hereto are expressly canceled.

3.3 *Successors and Assigns.* Except as otherwise provided in this Agreement, the terms and conditions of this Agreement shall inure to the benefit of and be binding upon the respective permitted successors and assigns of the parties (including transferees of any of the Preferred Stock). Nothing in this Agreement, express or implied, is intended to confer upon any party other than the parties hereto or their respective successors and assigns any rights, remedies, obligations, or liabilities under or by reason of this Agreement, except as expressly provided in this Agreement.

3.4 *Amendments and Waivers.* Any term of this Agreement may be amended or waived only with the written consent of the Company and Stockholders holding a majority in interest of the Common/ Preferred Stock; provided, however, that any amendment that treats any Stockholder in a materially adverse manner that is different and disproportionate from any other Stockholder will require separate approval of such Stockholder. Notwithstanding the foregoing, this Agreement may be amended with only the written consent of the Company for the sole purpose of including additional purchasers of equity tokens representing Common/ Preferred Stock as “Investors.” Any amendment or waiver effected in accordance with this paragraph shall be binding upon each party to the Agreement, whether or not such party has signed such amendment or waiver, each future holder of share tokens representing the Stockholders’ Common/ Preferred Stock and the Company.

3.5 *Severability.* If one or more provisions of this Agreement are held to be unenforceable under applicable law, such provision shall be excluded from this Agreement, and the balance of the Agreement shall be interpreted as if such provision were so excluded and shall be enforceable in accordance with its terms.

3.6 *Governing and Submission to Jurisdiction.* This Agreement and all acts and transactions pursuant hereto and the rights and obligations of the parties hereto shall be

governed, construed and interpreted in accordance with the laws of the Delaware, without giving effect to principles of conflicts of law. Each of the Stockholders and the Company submits to the jurisdiction of any state or federal court sitting in the State of Delaware, in any action or proceeding arising out of or relating to this Agreement and agrees that all claims in respect of the action or proceeding may be heard and determined in any such court. Each of the Stockholders and the Company waives any defense of inconvenient forum to the maintenance of any action or proceeding so brought and waives any bond, surety or other security that might be required of any other party with respect thereto.

3.7 *Counterparts.* This Agreement may be executed in several counterparts, and each counterpart when so executed and delivered shall constitute an original instrument, but all such separate counterparts shall constitute one and the same agreement. Signatures transmitted herein via facsimile or any electronic image shall be deemed original signatures.

3.8 *Titles and Subtitles.* The titles and subtitles used in this Agreement are used for convenience only and are not to be considered in construing or interpreting this Agreement.

[Signature Pages Follow]

COUNTERPART SIGNATURE PAGE TO STAKEHOLDER RIGHTS AGREEMENT

The parties have executed this Stakeholder Rights Agreement as of this _____, 2020

EQUITY TOKEN HOLDER

Date: _____

By: _____

Name: _____

Company Name (if any): _____

Title (if any): _____

COMPANY:

DATRIKO SERIES LLC

By:

Name:

Title:

Date

Contact Points:

Milla Bakhareva

Founding Partner

205 East 42 Street | New York, NY-11117

P.646-436-3677

E. milla.bakhareva@gmail.com